

THE CONFESSIONAL STATEMENT

I, Sanjay Sunil Dutt, age 34 years, occupation film artist, stay at 58 Pali Hill, Bandra, Bombay-50, with my father and two sisters... I have three valid licences for fire arms and possess three fire arms as mentioned below:

1. 270 rifle of Bruno make

2. 375 Magnum double-barrelled rifle

3 12-bore gun with double barrels

I purchased these weapons due to my fondness for hunting. I normally go for hunting with one friend of mine, Yusuf Nulwala.... I also know one friend of his by the name of Kersi Bapuji Adajania and met him three times. In December 1991, I had given dates for shooting to actor-producer Firoz Khan for his film *Yalgaar*. He had taken the whole unit for shooting in Dubai... where he introduced me to one Dawood Ibrahim and to his brother Anees.... Anees used to visit us regularly during the shootings and also at the place of our stay.

...The entire unit was invited for a dinner party by Dawood at his residence one day. I also attended the party... We were introduced to many of the persons present: Iqbal Mirchi, Sharad Shetty, Chota Rajan and many artists from Pakistan. Since Anees used to come frequently I had good acquaintance with him. I also know the proprietors of Magnum Video, Hanif Kadawala and Samir Hingora. I also signed a

film of theirs, *Sanam*... They used to come frequently to my house for taking dates of shooting....

During the recent communal riots, my father took interest in organising relief work for the riot victims with the help of persons in the film industry... We used to receive threatening telephone calls. Anonymous callers used to threaten us about killing or assaulting the male members of the family and molesting or raping my sisters... Also during my father's visits to Jogeshwari and Behrampada, he was attacked by furious mobs twice, branding him as pro-Muslim....

“Anees Ibrahim was a good acquaintance. I met him frequently in Dubai.”

Once when my father was sitting for a hunger strike at Hutatma Chowk, I got a threatening telephone call as a result of which we all got frightened and I contacted local police. However, no special police was sent... I casually mentioned about these happenings to a number of persons, including Hanif and Samir. Hanif told me that if I so desire he would make immediate arrangements to provide an automatic fire arm to me for my protection. Initially I did not show interest, but when Hanif and Samir started repeatedly telling me to acquire a fire arm from them, I gradually fell prey....

One day in mid-January, around 9-9.30

p.m., Hanif and Samir came to my house along with one person by name Salem. I had met this Salem once or twice earlier also. Then these three fellows told me that they would come next morning with the weapons...

Next morning, all three came to my house along with one other person who is not known to me. They came in a Maruti van... One person was sitting inside the van. After 15-20 minutes, he took out three AK-56 rifles.... I got some cloth from my house and gave it to them. Salem and the other person who had come with him wrapped

those rifles in the cloth and gave them to me.

When I opened and saw it, there were three rifles, some magazines and rounds. They told me that there were 250 rounds... On seeing three rifles I got scared and told them that I wanted only one weapon. Hanif and Salem told me to keep it for the time being and in case they were not required, they will take away the two weapons.

They also showed me some brown-coloured hand grenades and asked me whether I wanted those also. I do not want these grenades and you may please leave my house immediately, I told them... I kept the rifles and ammunition in the dickey of my

Fiat car number MMU 4372 and locked it. On the same night I removed the three rifles and ammunition and kept the same in a handbag which I kept in my private hall which is on the second floor of our bungalow. Two days thereafter since I had considerable mental tension I contacted Hanif and requested him to take away the weapons. He said that he would arrange to send somebody to collect the same. After two days, Hanif, Samir and Salem came to my house in the evening in a car.

I returned two AK-56 rifles and part of the ammunition to them but retained one AK-56 rifle and some ammunition. I also told them that after the riots subside they should take away the third rifle and ammunition, to which they agreed. About a week afterwards I again called Hanif on phone and requested him to take away the rifle and the ammunition... I was also experiencing great mental pressure since I had realised it was not the right thing to do. However, Hanif did not show any inclination to take away the same. I instructed my secretary not to give appointments to Hanif and Samir for any shooting so that they would realise I was not cooperating... When I met them they told me that the rifle possessed by me was none of their concern.

Around September 1992, during one of my shootings at RK Studio, one Kayyum, who is a member of the Dawood Ibrahim